Montgomery County District Court

Cause No. 2025-CV-0005

Samuel Carter, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	10-23-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the incident. Plaintiff failed to keep a proper lookout, failed to yield the right of way within the parking area, and failed to eexrcise ordinary care under the circumstances. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributable to Plaintiff.

Second, the injuries and damages claimed were caused, in whole or in part, by a pre-existing condition, a subsequent event, or a third party over whom Defendant had no control. Defendant invokes its right to a proportionate responsibility designation of all responsible third parties under Section 33.004.

Third, Plaintiff failed to mitigate damages by unreasonably delaying treatment or failing to follow reasonable medical advice, and any recovery must be reduced accordingly.